

VENDOR AGREEMENT

This Vendor Agreement ("Agreement") is entered into on 10 February 2025 ("Effective Date") between:

PARTY A (Client):

NovaMart Retail Private Limited

Address: Mumbai, Maharashtra, India

Email: procurement@novamart.com

PARTY B (Vendor / Supplier):

PrimePack Industries LLP

Address: Pune, Maharashtra, India

Email: sales@primepack.in

1. CONTRACT VALUE

The total contract value for supply of packaging materials is INR 42,00,000 (Forty-Two Lakh Rupees).

Breakdown:

- Corrugated Boxes: ■24,00,000
- Plastic Packaging: ■10,00,000
- Shipping Labels: ■8,00,000

Payment Milestones:

1. 40% (■16,80,000) advance
2. 40% (■16,80,000) on 50% delivery completion
3. 20% (■8,40,000) after final delivery and QC approval

2. CONTRACT DURATION

This Agreement is valid from 10 February 2025 until 9 February 2026, a duration of 12 months.

The Agreement automatically renews yearly unless either Party gives 45 days' prior written notice.

3. SCOPE OF SUPPLY

PrimePack shall supply:

- Corrugated packaging boxes
- Custom printed labels
- Waterproof plastic packaging
- Monthly deliveries as per purchase orders
- All goods must meet NovaMart's QC specifications

4. PAYMENT TERMS

- Payment due within 20 days of invoice date.
- Delayed payment incurs a 1.2% monthly interest.
- All payments are processed via NEFT/RTGS.

5. QUALITY ASSURANCE

Vendor must ensure:

- Materials meet required strength and durability
- No damaged or defective items
- Compliance with packaging safety standards

NovaMart reserves the right to reject substandard goods.

6. CONFIDENTIALITY

Both Parties agree to maintain the confidentiality of pricing, designs, and proprietary specifications.

7. INTELLECTUAL PROPERTY

All packaging designs, logos, and branding provided by NovaMart remain its exclusive property.

Vendor may not reuse or redistribute them.

8. LIMITATION OF LIABILITY

Vendor's total liability shall not exceed 50% of the total contract value.

Neither Party shall be liable for indirect, consequential, or punitive damages.

9. TERMINATION

Either Party may terminate this Agreement with 30 days' written notice.

Immediate termination allowed for:

- Fraud

- Quality failure
- Breach of confidentiality
- Delay exceeding 30 days

10. DELIVERY TERMS

- Vendor must deliver to NovaMart's central warehouse in Mumbai.
- Delays beyond agreed timelines attract penalties of ₹5,000 per day, unless caused by Force Majeure.

11. GOVERNING LAW

This Agreement is governed by the laws of India, and disputes fall under the jurisdiction of Mumbai Courts.

12. DISPUTE RESOLUTION

If negotiation fails, disputes shall be addressed through mandatory arbitration in Mumbai, under the Arbitration and Conciliation Act, 1996.

13. FORCE MAJEURE

Parties shall not be liable for delays caused by events such as natural disasters, war, lockdowns, or government restrictions.

14. ENTIRE AGREEMENT

This Agreement contains the entire understanding between the Parties.

SIGNATURES

For NovaMart Retail Pvt. Ltd.

Name: _____

Designation: _____

For PrimePack Industries LLP

Name: _____

Designation: _____